

Amendment No. 1 to HB0811

Farmer
Signature of Sponsor

AMEND Senate Bill No. 227*

House Bill No. 811

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 29-34-213, is amended by adding the following as a new subsection:

(c)

(1) Notwithstanding subsection (b), a charitable organization that provides housing to a person whom the charitable organization knows is unlawfully present in the United States may be held liable for a loss, damages, injury, or death resulting from a criminal offense committed by the person who is unlawfully present in the United States while the person is receiving housing services from the charitable organization if the charitable organization's conduct in providing housing constitutes negligence, gross negligence, or willful and wanton misconduct.

(2) As used in this subsection (c), "housing" means long-term living accommodations, and includes assistance with obtaining or signing a lease for an apartment or rental home, but does not include temporary overnight housing such as that provided by a homeless shelter.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.